

Calendar Line # 10
Case Name Rosette Simon et al vs EAH Housing Inc. et al
Case No. 26CV484388
Demurrer Before the court is defendant EAH Housing, Inc.’s demurrer to plaintiffs’ first amended complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> In their first amended complaint (“FAC”), self-represented plaintiffs Rosette Simon and Shaquille Ceesay (collectively, “Plaintiffs”) set forth a narrative interspersed with a number of purported common law and statutory violations relating to what the court presumes to be their tenancy at a residential property leased to them by defendant EAH Housing, Inc. (“EAH”). Although a judge should ensure that self-represented litigants are not being misled or unfairly treated (see <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284), self-represented litigants are not entitled to special treatment with regard to the Rules of Court or Code of Civil Procedure. “[W]e cannot disregard the applicable principles of law and accord defendant any special treatment because he instead elected to proceed in propria persona. [Citations.]” (<i>Stein v. Hassen</i> (1973) 34 Cal. App. 3d 294, 303). “A litigant has a right to act as his own attorney [citation] ‘but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts.’” (<i>Lombardi v. Citizens Nat’l Trust & Sav. Bank</i> (1955) 137 Cal.App.2d 206, 208-209). Among other things, Plaintiffs allege defendant EAH “breached the implied warranty of habitability,” “failed to fix broken elevator,” “made multiple false statements of plaintiffs,” “took away parking space,” “never sent paperwork regarding security deposit,” “allowed water damage from above units,” “charged illegal amount of court fees,” “harassed Plaintiff,” “discriminated against both Plaintiffs,” “took pictures of tenants personal property w/o consent,” “had violation of building codes,” “defamed the character of Plaintiffs,” and “attempted multiple unlawful entries.” (FAC, pp. 4 – 5). On January 16, 2026, Plaintiffs filed a complaint against defendant EAH. On May 8, 2026, Plaintiffs filed the now operative FAC against defendant EAH. On June 30, 2026, defendant EAH filed a Declaration of Demurring or Moving Party in Support of Automatic Extension (“Extension Declaration”). On July 6, 2026, Plaintiffs filed an objection to defendant EAH’s Extension Declaration. On July 8, 2026, defendant EAH filed the motion now before the court, a demurrer to Plaintiffs’ FAC with an original hearing date of August 6, 2026. There being no timely filed opposition, the court issued a tentative ruling on August 5, 2026 sustaining defendant EAH’s demurrer with leave to amend. On August 6, 2026, Plaintiffs appeared at the hearing but defendant EAH did not appear as there had been no notice of any challenge to the tentative ruling. The court continued hearing on defendant EAH’s demurrer to September 14, 2026. On August 10, 2026, Plaintiffs filed opposition (captioned “Objection”) to defendant EAH’s demurrer.

On September 4, 2026, defendant EAH filed a reply brief in support of its demurrer.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

III. ANALYSIS

A. MEET AND CONFER

As a preliminary matter, Plaintiffs contend defendant EAH failed to comply with Code of Civil Procedure section 430.41. That section provides that the demurring party must meet and confer with the party who filed the challenged pleading “for the purpose of determining whether an agreement could be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., §430.41, subd. (a)). During this process, the demurring party must identify all causes of action it believes are subject to demurrer, identify the bases for the demurrer, and provide legal support. (Code Civ. Proc., §430.41, subd. (a)(1)). In turn, the opposing party shall provide legal support for its position that the pleading is legally sufficient or any identified defects may be cured. (Code Civ. Proc., §430.41, subd. (a)(1)). The demurring party shall file and serve with its demurrer a declaration stating that: (1) the means by which the demurring party met and conferred and that the parties did not reach agreement; or (2) that the party who filed the pleading failed to respond or otherwise failed to meet and confer in good faith. (Code Civ. Proc., § 430.41, subd. (a)(3)).

In its opposition, Plaintiffs contend defendant EAH did not adequately meet and confer prior to the filing of this demurrer. In a supporting declaration accompanying its demurrer, defendant EAH’s counsel declares she did meet and confer via e-mail with Plaintiffs, attaching a copy of the various exchanges dated between June 29, 2026 and June 30, 2026. (See ¶¶3 – 6 and Exhibits B – D to the Declaration of Rena G. Sera in Support of Defendant EAH, Inc.’s Demurrer to Plaintiffs’ Complaint).

The court finds defendant EAH complied with Code of Civil Procedure section 430.41. In any case, a court may not sustain or overrule a demurrer based on the insufficiency of the meet and confer process. (Code Civ. Proc., §430.41, subd. (a)(4)).

B. MERITS

Defendant EAH demurs to Plaintiffs’ FAC on the ground that the pleading is uncertain. (Code Civ. Proc., §430.10, subd. (f)). “As used in this subdivision, ‘uncertain’ includes ambiguous and unintelligible.” (*Id.*) Defendant EAH demurs additionally on the ground that the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., §430.10, subd. (e)). Defendant EAH contends the Plaintiffs’ FAC is uncertain and fails to state sufficient facts because Plaintiffs allude to various common law and statutory violations without alleging any factual support for any of the elements thereof.

In addition, Plaintiffs do not number their causes of action. Cal. Rules of Court, rule 2.112 states, “Each separately stated cause of action, count, or defense must specifically state:

- (1) Its number (e.g., ‘first cause of action’);
- (2) Its nature (e.g., ‘for fraud’);

- (3) The party asserting it if more than one party is represented on the pleading (e.g., ‘by plaintiff Jones’); and
- (4) The party or parties to whom it is directed (e.g., ‘against defendant Smith’).”

Plaintiffs’ opposition focuses primarily on the inadequacy of defendant EAH’s meet and confer efforts and other perceived improprieties. However, Plaintiffs do not address the substantive deficiencies raised by defendant EAH’s demurrer.

IV. CONCLUSION

Based on the foregoing, Defendant EAH’s demurrer to Plaintiffs’ FAC on the ground that the pleading is uncertain (Code Civ. Proc., §430.10, subd. (f)) and on the ground that the pleading does not state facts sufficient to constitute a cause of action (Code Civ. Proc., §430.10, subd. (e)) is SUSTAINED with 10 days’ leave to amend. All other request(s) for affirmative relief are DENIED. The Court will prepare the formal order.